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CASE NAME: Melkonians, et al., v. City of Los Angeles, et al.

CASE NO.: 25SMCV00773

MOTION: Demurrer to the First Amended Complaint

HEARING DATE: 8/27/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant the City of Los Angeles demurs to each cause of action stated in the First Amended Complaint (“FAC”) filed by Plaintiffs Armen Melkonians and Karla Shah.

Request
for Judicial Notice

Defendant’s
request for judicial notice is GRANTED.

Sur
reply

The Court declines to consider any new arguments raised in the sur-reply. As to the purported new issue raised in reply, the arguments are proper. Defendant raised the statute of limitations issue in its opening brief. The reply merely responds to arguments raised by the opposition papers on this point.

Mandatory
Duty

The FAC relies solely on the theory that Los Angeles Municipal Code ("LAMC") section 12.21.C.10 imposed a mandatory duty on the City under Government Code section 815.6. Gov. Code section 815.6 provides "[w]here a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty." (Gov. Code § 815.6.) To determine whether an enactment contains a mandatory duty under Government Code section 815.6, the courts have developed a three-pronged test i) the enactment must impose a mandatory, not discretionary, duty; ii) the enactment must intend to protect against the kind of risk of injury suffered by the party asserting section 815.6 as a basis for liability; and iii) a breach of the mandatory duty must be a proximate cause of the injury suffered. (County of Los Angeles v. Superior Court (2002) 102 Cal.App.4th 627, 638–639.) Whether a particular statute is intended to impose a mandatory duty, rather than a mere obligation to perform a discretionary function, is a question of statutory interpretation for the courts. (Creason v. Department of Health Services (1998) 18 Cal.4th 623, 631.) The first prong is strictly construed; courts will only find a mandatory duty if the enactment affirmatively imposes the duty and provides implementing guidelines. (Guzman v. County of Monterey (2009) 46 Cal.4th 887, 898-899.) The plaintiff must also show the injury is one of the consequences which the enacting body sought to prevent through imposing the alleged mandatory duty. (Id.) "Our inquiry in this regard goes to the legislative purpose of imposing the duty. That the enactment confers some benefit on the class to which plaintiff belongs is not enough; if the benefit is incidental to the enactment's protective purpose, the enactment cannot serve as a predicate for liability under section 815.6." (Ibid., quotations and citations omitted.)

Plaintiffs

assert that LAMC section 12.21.C.10 imposed a mandatory duty on the City to deny their permit, and the City's issuance of the permit and/or failure to deny the permit caused their damages. (FAC ¶ 56.) As a result of the City's conduct, and due to Plaintiffs' reliance on the City's permits and approvals, Plaintiffs suffered financial harm including: (a) Architectural, civil, structural, geotechnical, and other professional design fees; (b) Permit fees and City charges; (c) Grading, shoring, foundation, and other construction work performed on the Property; (d) Construction management and inspection fees; (e) Loan interest, carrying costs, property taxes, and insurance; (f) Legal fees

and costs incurred to defend the Building Permit Case and to prosecute the appeal; and (g) Other costs incident to designing and attempting to construct their home in reliance on the City's permits. (FAC ¶¶ 46-47.) Plaintiffs also suffered emotional distress from the loss of their planned home and the uncertainty/financial strain created by the City's conduct. (Id., ¶ 48.)

This

section regards zoning regulations for "Single-Family Zone Hillside Area Development Standards." Subsection 12.21.C.10(i)(3) addresses "street access" in hillside areas, and provides: "For any new construction of, or addition to, a One-Family Dwelling on a Lot that does not have a vehicular access route from a Street improved with a minimum 20-foot wide continuous paved roadway from the driveway apron that provides access to the main residence to the boundary of the Hillside Area, no Building permit or Grading permit shall be issued unless the construction or addition meets the requirements of this Subdivision 10. or has been approved by a Zoning Administrator pursuant to Section 12.24 X.28 of this Code."

Assuming

that section 12.21.C.10(i)(3) creates a specific, non-discretionary duty on the part of the City not to issue permits under certain circumstances, the enactment is still not designed to protect Plaintiffs from the alleged harm. From the text of the LAMC, the Court can conclude that section 12.21.C.10(i)(3) is designed to protect the physical safety of residents, pedestrians and drivers on the City's roadways. Section 12.02 states the purpose of the section is as follows:

"to consolidate and coordinate all existing zoning regulations and provisions into one comprehensive zoning plan in order to designate, regulate and restrict the location and use of buildings, structures and land, for agriculture, residence, commerce, trade, industry or other purposes; to regulate and limit the height, number of stories, and size of buildings and other structures hereafter erected or altered to regulate and determine the size of yards and other open spaces and to regulate and limit the density of population; and for said purposes to divide the City into zones of such number, shape and area as may be deemed best suited to carry out these regulations and provide for their enforcement. Further, such regulations are deemed necessary in order to encourage the most appropriate use of land; to conserve and stabilize the value of property; to provide adequate open spaces for light and air, and to prevent and fight fires; to prevent undue

concentration of population; to lessen congestion on streets; to facilitate adequate provisions for community utilities and facilities such as transportation, water, sewerage, schools, parks and other public requirements; and to promote health, safety, and the general welfare all in accordance with the comprehensive plan.”

Section

12.02 also cites various cases, which, in part, deny that the adoption of the zoning ordinance gives a property owner any vested rights. (See, e.g., *Wheeler v. Gregg*, (1949) 90 Cal. App. 2d 348, 365.) The specific section at issue only pertains to street access and, in line with section 12.02's stated purposes, was enacted to encourage appropriate use of land, conserve/stabilize property values, regulate open spaces, lessen congestion, facilitate transportation, and otherwise promote the health, safety and general welfare of all. Plaintiffs alleged reliance harms are substantially different and removed from such concerns. Plaintiffs allege that the issuance of their permit and/or the failure to deny their permit caused them to experience increased construction costs, delays in the construction process, carrying costs, and legal fees resulting from the underlying litigation.

At

best, residents would only derive a tertiary or incidental benefit coming from the certainty of the permitting process. In fact, the requirements of section 12.21.C.10(i)(3) seem to be designed to cause the exact type of expenditures Plaintiffs now claim as damages, rather than protect Plaintiffs from said damage. Adding minimum safety requirements for roadways and establishing the permitting processes for new buildings or additions would only tend to increase the construction costs to homeowners, and risk the risk of litigation for violations of the permitting process. Importantly, Plaintiffs cite no legal authority which would find that the 20-foot CPR for streets in certain zones was designed to protect against reliance harm suffered by homeowners who designed and constructed homes based on erroneous permits approved in violation of the CPR. Plaintiffs only provide bare legal conclusions throughout the FAC. (See, e.g., FAC ¶ 53, 70.) Thus, the court cannot conclude, as a matter of law, that section 12.21.C.10(i)(3) is designed to prevent the reliance harm that Plaintiffs now claim.

In

support of the negligence cause of action, the FAC only cites Government Code section 815.6 and LAMC section 12.21.C.10(i)(3). Since the FAC fails to state a duty under such sections, the negligence cause of action is without statutory

support. (Searcy v. Hemet Unified School District (1986) 177 Cal.App.3d 792, 802 [government tort liability is dependent on the existence of an authorizing statute or enactment, "every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty"].)

Additionally,

as to the dangerous condition cause of action, Plaintiffs do not cite any enactment creating a mandatory duty on the City to widen Westwanda Drive. (FAC ¶ 73.) LAMC section 12.21.C.10 makes no such consideration. If anything, this section permits Plaintiffs to widen their private ingress to the standard or obtain approval from the Zoning Administrator. But there is no LAMC section on the record which would require the City to widen the roadway. The section only forbids the issuance of a permit unless the applicant brings their property to code.

Accordingly,

no mandatory duty under section 815.6 is stated.

Immunities

Each

of the cited immunities facially apply to each cause of action. Government Code section 818.2 states: "A public entity is not liable for an injury caused by adopting or failing to adopt an enactment or by failing to enforce any law." Gov. Code section 818.4 states: "A public entity is not liable for an injury caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked." Gov. Code section 818.6 states: "A public entity is not liable for injury caused by its failure to make an inspection, or by reason of making an inadequate or negligent inspection, of any property, other than its property (as defined in subdivision (c) of Section 830), for the purpose of determining whether the property complies with or violates any enactment or contains or constitutes a hazard to health or safety." Gov. Code section 818.8 states: "A public entity is not liable for an injury caused by misrepresentation by an employee of the public entity, whether or not such misrepresentation be negligent or intentional."

Here,

Plaintiffs claim damages from the City's failure to enforce Subsection 12.21.C.10(i)(3) by denying their permit in the first instance, and instead issuing permits to Plaintiffs. (FAC ¶¶ 56, 63, 73.) Thus, the claims against the City are premised on the City's failure to enforce the LAMC and its issuance or refusal to deny the subject permits. The FAC and judicially noticeable documents also show that the permits were negligently issued in reliance on erroneous measurements by the BOE. (FAC ¶¶ 21, 29; RJN Ex. E at 3-4.) Plaintiffs also allege that their reliance on the City's representations within the permits/approvals caused them damages. (FAC ¶¶ 46, 53.) The City provides ample legal authority that it would be immune for said acts. (*Burns v. City Council* (1973) 31 Cal.App.3d 999, 1003-1005, *Cancun Homeowners Assn. v. City of San Juan Capistrano* (1989) 215 Cal.App.3d 1352, 1358-1359, *Friedman v. City of Los Angeles* (1975) 52 Cal.App.3d 317, 322, *Thompson v. City of Lake Elsinore* (1993) 18 Cal.App.4th 49, 55-56.)

Plaintiffs

assert that these immunities do not apply to mandatory duties under section 815.6. (See *Morris v. County of Marin* (1977) 18 Cal.3d 901, 916-917 [recognizing an exception to the immunities stated in §§ 818.2 and 818.4, where Lab. Code § 3800 imposed a mandatory duty under Gov. Code § 815.6 on counties to insure that applicants for building permits carry workers' compensation insurance; county may be held liable for injuries proximately resulting from its failure to discharge such duty].) As discussed, no such duty is stated. Without stating a mandatory duty under section 815.6, all of the immunities cited by the City apply to Plaintiffs' causes of action. Even if *Morris* would bar the immunities provided by sections 818.2 and 818.4, the immunities in sections 818.6 and 818.8 would also apply to each cause of action, since each is fundamentally premised on the negligence inspection of the subject roadway and Plaintiffs' reliance on the City's representations.

Claim

Presentation

Under

the Government Tort Claims Act, the general rule is that any party with a claim for money or damages against a public entity must first file claim directly with that entity; only if that claim is denied or rejected may the claimant file a lawsuit. (Govt. Code §§ 905, 945.4.) This provides the public entity

with an opportunity to evaluate the claim and decide as to whether it will pay on the claim. (Roberts v. County of Los Angeles (2009) 175 Cal.App.4th 474.) Failure to allege facts in the complaint demonstrating compliance with the pre-litigation governmental claims presentation requirements subjects the complaint to a general demurrer. (State of Calif. v. Superior Court (2004) 32 Cal.4th 1234, 1239.)

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plaintiff must comply with the claim presentation requirements even if the entity has actual knowledge of the circumstances surrounding the claim. (City of San Jose v. Superior Court (1974) 12 Cal.3d 447, 455.) A claim need not contain the detail and specificity required of a pleading, but needs to fairly describe what the entity is alleged to have done. (Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority (2004) 34 Cal.4th 441, 446.) A complaint's fuller exposition of the factual basis beyond that given in the claim is not fatal, so long as the complaint is not based on an entirely different set of facts. (Id. at 447.) However, if a plaintiff relies on more than one theory of recovery against the governmental agency, each cause of action must have been reflected in a timely claim, and the factual circumstances set forth in the written claim must correspond with the facts alleged in the complaint. (Fall River Joint Unified School Dist. v. Superior Court (1988) 206 Cal.App.3d 431, 434.)

As

to the third cause of action, Plaintiffs did not file a claim alleging Dangerous Condition of Public Property, and the FAC does not allege that they did. (FAC ¶¶ 8–12.) The noticed claims do not pertain to the physical condition of the roadway. (RJN Exs. G-H.) The claims only stated the City's negligent issuance of ministerial building permits. This failure provides additional grounds for demurrer against the third cause of action.

Conclusion

In

light of the above discussion, the Court finds no reasonable possibility of successful amendment. Accordingly, the demurrer is SUSTAINED without leave to amend.